

26STCV08809 26STCV08809

County: los-angeles

Division: Civil Law and Motion

Department: 509

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Case Number: 26STCV08809 Hearing Date: July 10, 2026 Dept: 509

Safeway Insurance Company, et al. v. Dong Eun Kim

DEFENDANT'S MOTION FOR LEAVE TO FILE CROSS-COMPLAINT

MOVING PARTY: Defendant Dong Eun Kim

RESPONDING PARTY(S): None

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiffs Safeway Insurance Company and Karen Pisciotto (Pisciotto, collectively, Plaintiffs) bring this action against Dong Eun Kim (Defendant) for property damage and personal injury sustained in a motor vehicle accident. Plaintiffs bring causes of action for: (1) negligence; and (2) motor vehicle liability.

Defendant now moves for leave to file a cross-complaint. No opposition was filed.

TENTATIVE RULING:

Defendant's motion for leave to file a Cross-Complaint is GRANTED.

The standalone Cross-Complaint must be filed within 10-days and timely served on all parties as required by law.

Moving party is ordered to give notice, unless waived.

DISCUSSION:

Motion for Leave to File Cross-Complaint

Defendant moves for leave to file a cross-complaint against Pisciotto. (Cho Decl. ¶2, Exh. A.) Defendant's proposed cross-complaint will assert a cause of action for negligence alleging that, in fact, Pisciotto was at fault for the motor vehicle accident at issue in this action. (Ibid.)

Cross-claims against complainants arising from the same accident, existing at the time of filing an answer, are compulsory. (See, e.g., Code Civ. Pro. §426.30, subd. (a); *Al Holding Co. v. O'Brien & Hicks, Inc.* (1999) 75 Cal.App.4th 1310, 1313-14.) Leave to file compulsory cross-complaints must be granted where moving parties acted in good faith. (Code Civ. Pro. § 426.50; *Silver Organizations, Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98-99.) The "principle of liberality requires that a strong showing of bad faith be made in order to support a denial of the right to file a cross-complaint under this section." (Foot's *Transfer & Storage Co. v. Superior Ct.* (1980) 114 Cal.App.3d 897, 902 [emphasis added].) "The legislative mandate is clear. A policy of liberal construction of section 426.50 to avoid forfeiture of causes of action is imposed on the trial court. A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result." (*Silver Organizations, Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98-99.)

Here, because the complaint and proposed cross-complaint are based on the same incident (the motor vehicle accident) the cross-complaint is compulsory. Therefore, the opposing party must make a strong showing of bad faith to oppose Defendant's request for leave. By failing to oppose, no party has made such showing.

The Court need not address the merits of the proposed cross-complaint at this time. Rather, the "better course of action" is to permit the filing "and then let the parties test its legal sufficiency in other appropriate proceedings," such as by demurrer or motion to strike. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760.)

Accordingly, Defendant's motion for leave to file a Cross-Complaint is GRANTED.

IT IS SO ORDERED.

Dated: July 10, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.